



HIS GLOBAL CONCLAVE
UNITED NATIONS HUMAN RIGHTS COUNCIL
UNHRC BACKGROUND GUIDE

TOPICS:

- Topic 1: Protecting the rights of the refugees and migrants
Topic 2: Protecting Individuals digital rights and privacy in the age of technology
and surveillance
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SECTION I | LETTER FROM THE SECRETARIAT

Greetings Delegates!!!

On behalf of the Secretariat, we are thrilled to welcome you to the 1st Edition of the HIS Global Conclave. This event promises to be an enriching experience that will leave a lasting impression. The Conclave aims to showcase your creativity, diplomacy, and problem-solving skills as you engage in discussions around global challenges.

This is not just a simulation, but a unique gathering of bright minds from diverse backgrounds, tackling pressing issues with a focus on the Sustainable Development Goals. Our six esteemed committees are designed to address problems not commonly explored in other MUNs, and we eagerly anticipate your innovative solutions.

Beyond debates, the Conclave offers a platform to display your public-speaking, networking, and leadership skills while experiencing the richness of cultures from around the world. Active participation is key to making your committee a success and truly embracing the spirit of being a "MUNner."

We at HIS appreciate the enthusiasm students bring to international diplomacy, and we have worked diligently to ensure a seamless experience for all. Your involvement is the first step toward shaping the next generation of world leaders.

We can't wait to meet you all on November 15th for what promises to be productive and engaging discussions!

Warm regards,

Akhil Gokul

Secretary General

Rehan Saied

Deputy Secretary General

SECTION II | LETTER FROM THE EB

Greetings, Delegates!

On behalf of the Secretariat, we are excited to welcome you to the **1st Edition of the HIS Global Conclave!** As one of the Vice Chairs of the United Nations Human Rights Council, I invite you to engage with us on two critical topics: Protecting the Rights of Refugees and Migrants, and Safeguarding individuals' digital rights and privacy in an era of technology and surveillance.

This Conclave is not just a model conference; it's a vibrant gathering of passionate minds from diverse backgrounds, united to tackle pressing global challenges. Our esteemed committee focuses on issues often overlooked in other MUNs, and your insights will be vital as we work toward meaningful solutions aligned with the Sustainable Development Goals.

Beyond the debates, the Conclave offers a dynamic platform to enhance your public-speaking, networking, and leadership skills while experiencing the richness of cultures worldwide. Your active participation is key to our success, and your enthusiasm will inspire transformative discussions.

We recognize the passion you bring to international diplomacy, and we have worked diligently to create an enriching experience for all participants. This is your chance to be part of a dialogue that shapes the next generation of world leaders.

Mark your calendars for **November 15th**—we can't wait to embark on this inspiring journey with you!

Warm regards,

Neha Rajesh
Chair
United Nations Human Rights Council

Alven Aloysius
Vice Chair
United Nations Human Rights Council

Suhas.S.Kamath
Vice Chair
United Nations Human Rights Council

SECTION III | HISTORY OF THE COMMITTEE

The Human Rights Council is the primary intergovernmental body within the United Nations, established on **March 15, 2006**, through Resolution **60/251**. It replaced the previous Commission on Human Rights and aims to promote and protect human rights worldwide. Made up of **47 member states**, the Council serves as a platform to address human rights violations and specific country situations. It also deals with urgent human rights crises and offers recommendations to improve practices.

The Council encourages discussions on human rights issues involving UN representatives, experts, nations, NGOs, and other stakeholders. It adopts resolutions that reflect the global perspective on various human rights concerns, hoping to inspire governments to address these issues.

For serious human rights situations, the Council holds special sessions—36 have been convened so far. It reviews the human rights records of all UN Member States through the **Universal Periodic Review (UPR)** and appoints independent experts to monitor specific issues. The Council also designates Special Procedures, who focus on particular countries or themes, and it can authorize inquiries and fact-finding missions to investigate war crimes and crimes against humanity.

SECTION IV | INTRODUCTION TO THE AGENDA

Topic 1: Safeguarding the Human Rights of Refugees and Migrants, Reducing Discrimination, and Promoting Social Inclusion

Overview: The global refugee crisis has escalated dramatically in recent years due to a multitude of factors, including armed conflict, political instability, and climate change. According to the United Nations High Commissioner for Refugees (UNHCR), over 26 million people worldwide are classified as refugees, with millions more classified as internally displaced persons (IDPs) and migrants. This humanitarian challenge raises critical questions about the rights of these individuals and the responsibilities of host countries. Often, refugees and migrants face significant barriers, including discrimination, social exclusion, and limited access to essential services, which can severely hinder their ability to rebuild their lives.

Key Issues:

1. **International Refugee Laws:** Countries are obligated to uphold international agreements such as the 1951 Refugee Convention and its 1967 Protocol. These laws outline the rights of refugees to seek asylum and the legal obligations of states to protect them from return to places where they may face threats to their life or freedom. However, compliance with these laws varies significantly across countries, with some implementing restrictive policies that undermine these protections.
2. **Social Inclusion:** Successful integration of refugees and migrants is essential for both individual well-being and societal cohesion. This involves providing access to education, healthcare, housing, and employment opportunities. Integration also requires understanding and acceptance from the host community, which can be facilitated through programs that promote intercultural dialogue and community engagement.
3. **Reducing Xenophobia:** Discrimination against refugees and migrants can lead to social tension and conflict. Combating xenophobia is crucial to fostering inclusive societies. Governments and civil society must work together to implement anti-discrimination legislation, public awareness campaigns, and initiatives aimed at building bridges between different communities.
4. **Access to Justice:** Refugees and migrants often face legal barriers in accessing justice, which can leave them vulnerable to exploitation and abuse. Ensuring that these individuals have access to legal representation and recourse is vital in safeguarding their rights.

5. **Mental Health Support:** The trauma of displacement can have lasting psychological effects on refugees and migrants. Mental health services are crucial for helping these individuals cope with their experiences and integrate into society.

Discussion Questions:

- How can countries enhance compliance with international refugee laws, and what accountability mechanisms can be put in place?
 - What best practices exist for integrating migrants into local communities, and how can these be scaled?
 - How can governments and civil society collaborate effectively to combat xenophobia and discrimination?
 - In what ways can technology be utilized to improve access to resources and support for refugees and migrants?
 - How can countries ensure that refugees and migrants have equitable access to essential services, such as healthcare and education?
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Topic 2: Protecting Individuals' Digital Rights and Privacy in the Age of Technology and Surveillance

Overview: In an increasingly digital world, the protection of individual rights and privacy has become more complex and critical. The rise of technology and surveillance tools has transformed how governments and corporations collect, store, and utilize personal data. With the proliferation of smartphones, social media, and the Internet of Things (IoT), individuals are more exposed than ever to privacy breaches and surveillance. This reality raises important questions about how human rights should adapt to address these challenges effectively.

Key Issues:

1. **Government Surveillance:** The use of surveillance technologies by governments to monitor citizens can infringe upon privacy rights and civil liberties. Mass surveillance programs, often justified in the name of national security, can lead to a chilling effect on free expression and dissent, stifling democratic engagement and civic participation.
2. **Data Collection and Ownership:** As companies collect vast amounts of personal data, often without explicit consent, questions arise about who owns this data and how it should be used. Issues of data privacy, consent, and the potential for misuse or exploitation of personal information are critical in the digital age.
3. **Cyber Privacy:** The rise of cybercrime, including data breaches and identity theft, poses significant risks to individuals' privacy. Protecting personal information from unauthorized

access and ensuring cybersecurity measures are in place are vital components of safeguarding digital rights.

4. **Regulatory Frameworks:** Existing human rights frameworks may not adequately address the unique challenges posed by digital technology. New regulations are needed to protect individuals' rights in a digital context, including laws governing data protection, privacy rights, and the ethical use of artificial intelligence (AI).
5. **Public Awareness and Empowerment:** Educating individuals about their digital rights and how to protect their privacy online is essential. Empowering people with knowledge enables them to make informed choices regarding their personal data and privacy.

Discussion Questions:

- In what ways should human rights frameworks evolve to effectively address digital privacy concerns?
 - What specific regulations should be implemented to protect individuals from unwarranted surveillance by governments and corporations?
 - How can individuals exercise their rights in a landscape dominated by technology, and what resources are available to help them?
 - What role should technology companies play in ensuring the protection of user privacy, and how can they be held accountable?
 - How can international cooperation be fostered to address global challenges related to digital rights and privacy?
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Major Losses Associated with These Topics

1. **Loss of Lives:** Refugees often undertake perilous journeys to seek safety, leading to numerous fatalities. The Mediterranean Sea has seen thousands drown while trying to reach Europe, highlighting the risks faced by those fleeing conflict and persecution.
2. **Loss of Identity:** Displacement can result in a profound loss of cultural identity and sense of belonging for refugees and migrants. Many struggle to maintain their heritage and practices in new environments, which can lead to feelings of isolation.
3. **Economic Losses:** Discrimination against migrants can lead to underemployment or unemployment, resulting in economic hardships for individuals and loss of potential contributions to host economies. This can also strain public resources when migrants cannot access work opportunities.
4. **Erosion of Privacy:** Increased surveillance practices can result in significant losses of privacy. Individuals may feel constantly monitored, leading to self-censorship and a diminished sense of freedom in expressing opinions or engaging in political activities.

5. **Loss of Trust:** Data breaches and misuse of personal information can erode public trust in both governmental institutions and private companies. This mistrust can deter individuals from using digital services and engaging with institutions.
 6. **Social Division:** Xenophobia and discrimination against refugees and migrants can lead to increased social division, resulting in heightened tensions and conflict within communities. This undermines social cohesion and can create a hostile environment for all marginalized groups.
 7. **Mental Health Impact:** The trauma of displacement and the stress associated with discrimination and surveillance can lead to mental health issues, including anxiety, depression, and PTSD. Access to mental health support is often limited for both refugees and individuals living under surveillance.
 8. **Loss of Freedom of Expression:** In societies where surveillance is pervasive, individuals may refrain from expressing their thoughts or engaging in dissent for fear of repercussions, leading to a diminished public discourse and weakened democratic institutions.
- These losses underscore the urgent need for comprehensive strategies to protect human rights and foster inclusion and security in an increasingly complex and interconnected world. Addressing these challenges requires collaboration among governments, civil society, and international organizations to create policies and practices that uphold the dignity and rights of all individuals, regardless of their status.
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SECTION V | KEY TREATIES AND ACHIEVEMENTS

1. 1951 Refugee Convention and 1967 Protocol

- **Overview:** The 1951 Refugee Convention is the cornerstone of international refugee law. It defines who qualifies as a refugee and outlines the rights of refugees, as well as the responsibilities of nations to protect them. The 1967 Protocol expands the Convention's scope by removing geographical and temporal limitations.
- **Key Provisions:**
 - Right to seek asylum from persecution.
 - Non-refoulement principle, which prohibits returning refugees to countries where they face threats to their life or freedom.
 - Access to legal assistance and basic rights similar to those of citizens.
- **Participating Countries:** Over 145 countries, including the U.S., Canada, Australia, and all EU member states.

2. Global Compact on Refugees (2018)

- **Overview:** This framework aims to enhance international cooperation and support for refugees and host countries. It promotes a comprehensive approach to refugee situations, emphasizing the need for shared responsibilities and long-term solutions.
- **Key Provisions:**
 - Encourages resettlement and local integration.
 - Focuses on supporting countries hosting large numbers of refugees.
 - Stresses the importance of international solidarity and cooperation.
- **Participating Countries:** Endorsed by 181 countries, including all UN member states except the U.S.

3. Global Compact for Safe, Orderly and Regular Migration (2018)

- **Overview:** This compact outlines a cooperative framework for addressing international migration, aiming to ensure that migration is safe, orderly, and regular. It emphasizes the rights of migrants and the need for comprehensive migration policies.
- **Key Provisions:**
 - Promotes pathways for regular migration and reducing irregular migration.
 - Focuses on protecting migrants' rights and ensuring their well-being.
 - Encourages international cooperation on migration issues.

- **Participating Countries:** Adopted by 152 countries, including Canada, Germany, and New Zealand.

4. General Data Protection Regulation (GDPR) (2018, EU)

- **Overview:** GDPR is a landmark regulation that strengthens data protection and privacy for individuals within the European Union. It aims to give individuals greater control over their personal data and to standardize data privacy laws across Europe.
- **Key Provisions:**
 - Requires explicit consent for data collection and processing.
 - Grants individuals rights to access, rectify, and erase their data.
 - Imposes strict penalties for non-compliance by organizations.
- **Participating Countries:** All 27 EU member states and EEA countries.

5. California Consumer Privacy Act (CCPA) (2018, U.S.)

- **Overview:** The CCPA enhances privacy rights for California residents, allowing individuals to know what personal information is collected, how it is used, and to whom it is sold. It represents a significant advancement in consumer data protection in the U.S.
- **Key Provisions:**
 - Grants consumers the right to access their personal data.
 - Allows consumers to opt-out of the sale of their personal information.
 - Imposes obligations on businesses to disclose data practices.
- **Participating Entities:** Applicable to businesses operating in California.

6. Convention 108 for the Protection of Individuals with regard to Automatic Processing of Personal Data (1981, Council of Europe)

- **Overview:** This treaty is the first binding international instrument aimed at protecting individuals' personal data in automated processing. It sets principles for data protection that influence many national laws.
- **Key Provisions:**
 - Establishes principles of data quality, transparency, and accountability.
 - Encourages member states to adopt national laws reflecting these principles.
 - Aims to harmonize data protection standards across Europe.
- **Participating Countries:** 55 countries, including all Council of Europe member states.

Laws Created to Safeguard Peace

1. 1951 Refugee Convention and 1967 Protocol

- **Purpose:** Establishes the legal framework for the protection of refugees and outlines the responsibilities of states to ensure their safety and rights. This is essential for maintaining peace by preventing the persecution that leads to forced displacement.

2. Global Compact on Refugees (2018)

- **Purpose:** Aims to enhance international cooperation and support for refugees, promoting solutions that foster stability and peace in host countries. It encourages shared responsibility among nations, which is vital for global harmony.

3. Global Compact for Safe, Orderly and Regular Migration (2018)

- **Purpose:** Provides a framework for managing migration effectively and humanely, reducing the risks of exploitation and conflict associated with irregular migration. By promoting safe migration pathways, it contributes to regional and global peace.

4. United Nations Charter

- **Purpose:** The foundational treaty of the UN, promoting international cooperation and peace. It establishes principles for preventing conflict, protecting human rights, and addressing humanitarian crises, including those affecting refugees and migrants.

5. International Covenant on Civil and Political Rights (ICCPR) (1966)

- **Purpose:** Protects fundamental human rights, including the rights of all individuals regardless of their status. By safeguarding civil liberties, it helps maintain peace by addressing grievances that could lead to conflict.

6. Universal Declaration of Human Rights (UDHR) (1948)

- **Purpose:** Establishes fundamental human rights for all individuals, promoting dignity and equality. By advocating for the rights of refugees and migrants, it helps prevent the social unrest that can arise from human rights violations.

7. Data Protection Laws (e.g., GDPR, CCPA)

- **Purpose:** Protect individuals' digital rights and privacy, preventing misuse of personal data that can lead to distrust and societal tension. By safeguarding privacy, these laws contribute to social stability and peace.

8. Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment (1984)

- **Purpose:** Prohibits torture and ill-treatment, protecting individuals from abuses that can arise in contexts of war or repression. Upholding these rights is essential for peace and justice.

9. European Convention on Human Rights (1950)

- **Purpose:** Protects human rights and fundamental freedoms in Europe. Its enforcement mechanisms help address violations that could lead to conflict, thereby promoting peace in the region.

10. Rome Statute of the International Criminal Court (ICC) (2002)

- **Purpose:** Establishes the ICC to prosecute individuals for war crimes, genocide, and crimes against humanity. By holding perpetrators accountable, it aims to deter future conflicts and promote lasting peace.
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SECTION VII | CLOSING REMARKS

As delegates of the first Hindustan International School Global Conclave, you are responsible for representing your country, doing proper research on the above topics. This session presents you with the opportunity to showcase your debating abilities, diplomacy, critical and analytical skills and the ability to collaborate with other delegates

Good luck delegates!!

Regards,
The UNDP Executive Board.

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